3. To appear (when required by the Government of India) in any high court in any case in which the Government of India is concerned.

Rights And Limitations

In the performance of his/her official duties, the AG has the right of audience in all courts in the territory of India. Further, he/she has the right to speak and to take part in the proceedings of both the Houses of Parliament or their joint sitting and any committee of the Parliament of which he/she may be named a member, but without a right to vote. He/she also enjoys all the privileges and immunities that are available to a member of Parliament.

In order to avoid any complication and conflict of duty, the following limitations are placed on the AG:

1. He/she should not advise or hold a brief against the Government of India.
2. He/she should not advise or hold a brief in cases in which he/she is called upon to advise or appear for the Government of India.
3. He/she should not defend accused persons in criminal prosecutions without the permission of the Government of India.
4. He/she should not accept appointment as a director in any company or corporation without the permission of the Government of India.
5. He/she should not advise any ministry or department of Government of India or any statutory organization or any public sector undertaking unless the proposal or a reference in this regard is received through the Ministry of Law and Justice, Department of Legal Affairs[2a].

However, the AG is not a full-time counsel for the Government. He/she does not fall in the category of government servants. Further, he/she is not debarred from private legal practice.

Solicitor General Of India

In addition to the AG, there are other law officers of the Government of India. They are the solicitor general of India and additional solicitor general of India. They assist the AG in the fulfilment of his/her official responsibilities. It should be noted here that only the office of the AG is created by the Constitution. In other words, Article 76 does not mention about the solicitor general and additional solicitor general.

The AG is not a member of the Central cabinet. There is a separate law minister in the Central cabinet to look after legal matters at the government level[3].

Table 53.1 Articles Related to Attorney-General of India at a Glance

Article No.	Subject-matter
76.	Attorney-General of India